

CASE NAME: DISCOVER BANK VS. SAGAR BONDADA, JR.

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff had originally filed this Motion to enter judgment pursuant to stipulation for 3/3/26. The motion was served by mail to the address where Plaintiff had served the Defendant with process via substitute service. The same address was attached to the Motion, as part of the 664.6 agreement, underneath the purported signature of the Defendant.

The Motion is unopposed.

However, the date was continued by the court to 4/28/26, 9am.

The court's database does not indicate that the parties were notified of this change.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$8,218.73, less any credits for payments received, plus costs.

Plaintiff requested costs, but did not provide a memo or any detail explaining the cost allocation.

Defendant made total payments in the amount of \$1,700; thus, the judgment amount should be \$6,518.73.

Plaintiff can submit, at a later date, a memo on costs.

Disposition

If at least one of the parties can appear on 4/28/26, at 9 a.m., and demonstrate that the Defendant was served with notice of the hearing today, then the court would be inclined to grant Plaintiff's Motion, and Judgment would be entered in the amount of \$6,518.73.

However, if neither party can appear and make that showing, then this matter will be continued to 7/14/26 9am.

Court will provide notice.

5. 9:00 AM CASE NUMBER: L24-00460

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. TERI CRUZ

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER
JUDGMENT FILED ON 1/30/26 BY PLN**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation. The motion was served by mail to the attorney of record for Defendant.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$5,907.89, less any credits for payments received.

Defendant made total payments in the amount of \$2,810; thus, the judgment amount should be \$3,097.89.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,097.89.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L24-09079

CASE NAME: DISCOVER BANK VS. CIARA OKELLEY

***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY: DISCOVER BANK

***TENTATIVE RULING**

Plaintiff has filed a Motion to enter judgment pursuant to stipulation, but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process, and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/21/26, 9am.

7. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: STRIKE UNAUTHORIZED ATTORNEY APPEARANCE**

FILED BY:

***TENTATIVE RULING**